

## **Smt Monalika Mathur vs Family Court No-1 Jaipur City on 6 July, 2011**

IN THE HIGH COURT OF JUDICATURE FOR RAJASTHAN  
JAIPUR BENCH, JAIPUR

ORDER

S.B. Civil Transfer Application No. 59/2010

Smt. Monalika Mathur  
Vs.  
Family Court, No. 1, Jaipur City, Jaipur & Another.

DATE OF ORDER: 06.07.2011

HON'BLE MR. JUSTICE NARENDRA KUMAR JAIN

Mr. Hemant Sharma, for the applicant.  
Mr. Anurag Kulshreshtha, for Respondent No. 2.

BY THE COURT:

Heard learned counsel for the parties.

2. Applicant has filed this transfer application for transferring Divorce Petition No. 450/2010 pending between the parties in Family Court No. 1, Jaipur City, Jaipur to Family Court at Ajmer.

3. Submission of learned counsel for the applicant is that the applicant has instituted two petitions; first under Section 9 of the Hindu Marriage Act and second under Section 24 of the Hindu Marriage Act against Respondent No. 2 and in both the cases, Respondent No. 2 is appearing at Ajmer, whereas a divorce petition has been instituted against the applicant by Respondent No. 2 at Jaipur. He submitted that since Respondent No. 2 is already attending two cases at Ajmer, therefore, it will be appropriate that the case pending in Family Court No. 1, Jaipur City, Jaipur may also be transferred to Family Court at Ajmer, so all the cases may be consolidated and disposed off simultaneously.

4. Learned counsel for Respondent No. 2 does not dispute that two cases instituted by the applicant are pending in Family Court at Ajmer, however, he opposed the transfer application.

5. Since there is no dispute between the parties that two cases, first under Section 9 and another under Section 24 of the Hindu Marriage Act, are pending between the parties in the Family Court at Ajmer, therefore, it will be appropriate that present case, relating to matrimonial dispute, pending at Jaipur between the parties itself is transferred to Family Court at Ajmer, so all the cases may be tried and decided together by the same Court.

6. Consequently, transfer application is allowed. Divorce Petition No. 450/2010 titled Sanjeev Kumar Mathur Vs. Smt. Monalika Mathur filed under Section 13 of the Hindu Marriage Act, pending in the Court of Family Court No. 1, Jaipur City, Jaipur is transferred to Family Court at Ajmer. Parties are directed to appear before Family Court at Ajmer on 14.07.2011.

7. Registry is directed to send a copy of this order to both the concerned courts for necessary compliance.

(NARENDRA KUMAR JAIN),J.

Manoj, S.No.S.212